

APPROVED

By Alessandra at 9:42 am, Jun 02, 2020

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM LR (LOW-DENSITY RESIDENTIAL) TO MUR (MIXED-USE RESIDENTIAL EMPHASIS) FOR PROPERTY GENERALLY LOCATED NORTHEAST OF THE INTERSECTION OF KELLEY DRIVE AND OLD FAITHFUL ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 1, 2020, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 8, 9, 10, and 11, Block 42, Mountview Park, 6th Filing, Cheyenne, Wyoming is hereby changed to MUR Mixed-Use Residential Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

3306 Kelley Drive Zone District Map Amendment Process

CASE NUMBER(s): UDC-20-00152

SUBDIVISION CODE: MTV 06

PREPARED BY: Mark Christensen

MEETING DATES:	Planning Commission:	June 1, 2020	
	City Council:	June 8, 2020	1 st Reading
	Public Service Committee:	June 16, 2020	
	City Council:	June 22, 2020	2 nd Reading
	Public Service Committee:	July 7, 2020	
	City Council:	July 13, 2020	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map & Checklist; Draft Neighbor Notification Letter; Neighbor Notification List
- Neighbor Notification Letter – postmarked 5/15/2020 (sent to demonstrate compliance with notification requirements)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on June 1, 2020, the City of Cheyenne Planning Commission recommended approval of the zone change request from LR Low-Density Residential to MUR Mixed-Use Residential by a vote of 5-0.

STAFF RECOMMENDATION: The Development Department recommends approval of the zone change request from LR Low-Density Residential to MUR Mixed-Use Residential Emphasis, contingent on the approval of the Future Land Use Map amendment.

STAFF REPORT

3306 Kelley Drive **Zone District Map Amendment Process**

CASE NUMBER(s): UDC-20-00152 **SUBDIVISION CODE:** MTV 06
PREPARED BY: Mark Christensen
PUBLIC HEARING: June 1, 2020 (Planning Commission)

OWNER: First Church of Christ Scientist
3306 Kelley Drive
Cheyenne, WY 82001

AGENT: Kari Happold (307) 640-6339
3001 Henderson Drive Suite H
Cheyenne, WY 82001

PROJECT: 3306 Kelley Drive Zone Change

WORK DESCRIPTIONS: A zone change request from LR Low-Density Residential to MUR Mixed-Use Residential Emphasis for Lots 8, 9, 10, and 11 of Block 42 Mountview Park, 6th Filing.

LOCATION:

1. Legal Description: Lots 8, 9, 10, and 11, Block 42, Mountview Park, 6th Filing, Cheyenne, Wyoming
2. Location: Northeast corner of the intersection of Kelley Drive and Old Faithful Road.
3. Address: 3306 Kelley Drive.

SIZE: 2.93 acres

CURRENT ZONING: LR Low-Density Residential
PROPOSED ZONING: MUR Mixed-Use Residential Emphasis
EXISTING LAND USE: Neighborhood Assembly (Church)
PROPOSED LAND USE: Office – General (Real Estate Office)

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential	LR	City
South	Office, Medical Office	CB	City
East	Residential	LR	City
West	Office	CB	City

EXECUTIVE SUMMARY:

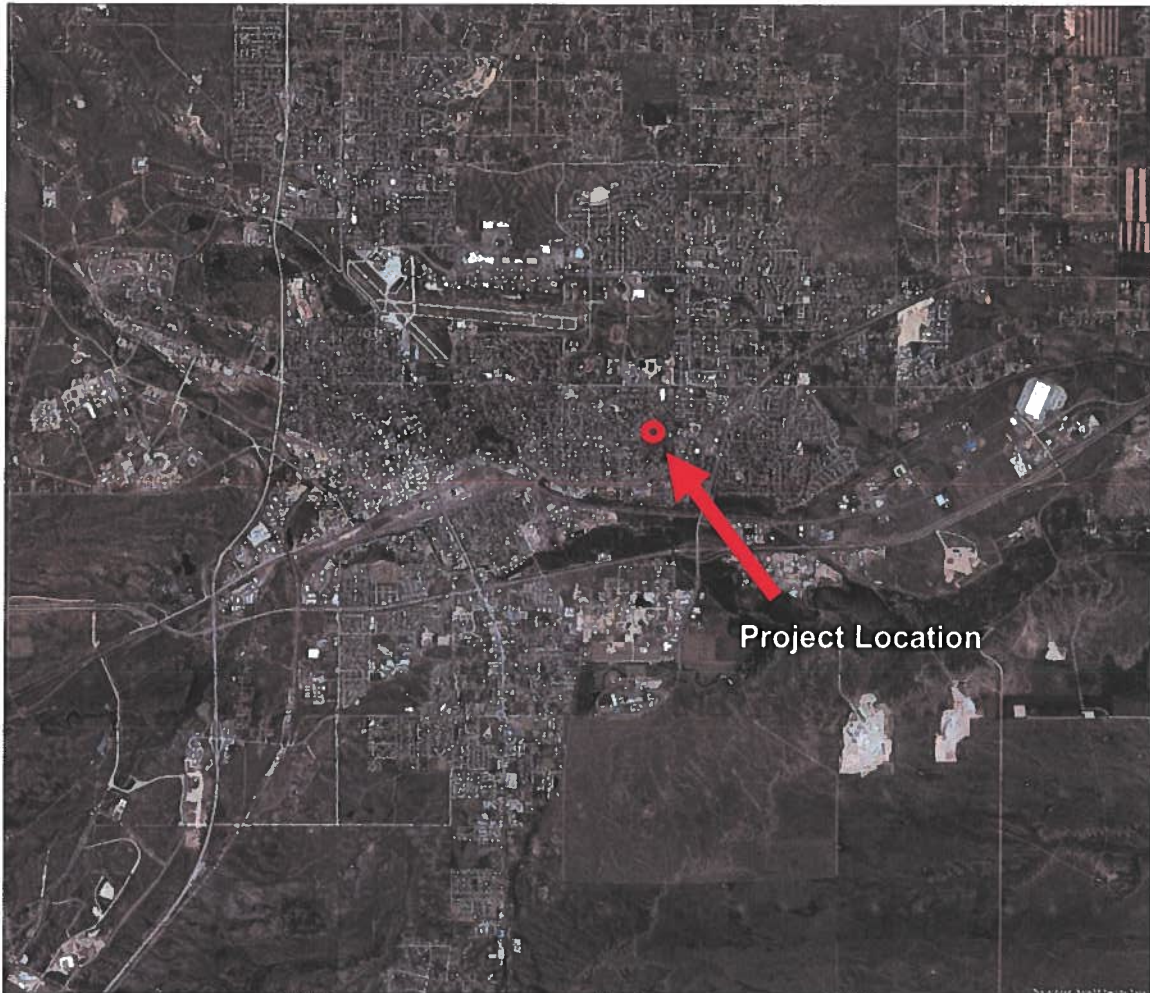
This zone change application proposes changing the zoning of Lots 8, 9, 10 and 11 of Block 42 of Mountview Park, 6th Filing from LR Low-density Residential to MUR Mixed-use Residential Emphasis. The subject property is currently vacant and was historically a church. The proposed zone change is due to a proposal to convert the existing structure into a real estate office.

The current zoning designation of LR does not permit the use of Office-General. The adjacent office uses and the surrounding residential properties illustrate that the MUR District is the best fit for proposed use for the subject property. The MUR District will permit the use of real estate office through an administrative procedure while ensuring more intense commercial uses, such as a gas station, will not be permitted in the future. Furthermore, the MUR District will allow the subject property to convert to a residential use if it should ever redevelop again.

The current Future Land Use designation of the subject property is Public/Quasi-Public. This designation describes potential uses as uses related to community services, such as fire stations, schools, libraries, community centers, hospitals, civic buildings, utilities, and cemeteries, and also churches and places of worship. The optimal zone for Public/Quasi-Public designation is P, Public District. Many churches and places of worship within the City have this future land use designation; however, the Public/Quasi-Public designation does not consider ways in which these properties may redevelop. Due to this requested zone change and another zone change across Lincolnway, staff has determined the corridor is better suited to have a Mixed-use Residential designation North of Lincolnway and a Mixed-Use Commercial Designation South of Lincolnway. This Future Land Use Map Amendment is accompanying this zone change through a separate Resolution.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change; contingent on the approval of the Future Land Use Map Amendment for the area.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located at 3006 Kelley Drive.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject property from Old Faithful Drive, facing northwest
Source: Development Office



Photograph #2 – Image of the subject property from the intersection of Kelley Drive and Old Faithful Road, facing east
Source: Development Office

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change through many policies in the document and with the proposed Future Land Use Map Amendment.

The current Future Land Use Designation for the subject property is Public/Quasi-Public. This Future Land Use Designation calls for uses related to community services, such as fire stations, schools, libraries, community centers, hospitals, civic buildings, utilities, and cemeteries, and also churches and places of worship. The optimal zone district for the Public/Quasi-Public designation is P, Public District – however, the P Public District zone can only be utilized on governmental properties.

Many churches and places of worship within the City have a Future Land Use Designation of Public/Quasi-Public; but, since they are nongovernmental agencies, do not have P Public zoning. The designation of Public/Quasi Public also does not account for potential redevelopment of such properties. Due to this requested zone change and another zone change across Lincolnway, staff has determined the corridor is better suited to have a Mixed-use Residential designation North of Lincolnway and a Mixed-Use Commercial Designation South of Lincolnway. The Future Land Use Map Amendment is accompanying this zone change through a separate Resolution. The MUR District will permit the use of real estate office through an administrative procedure while ensuring more intense commercial uses, such as a gas station, will not be permitted in the future. Furthermore, the MUR District will allow the subject property to convert to a residential use should it ever redevelop again. If the future land use map amendment is not approved; the rezoning application will not conform to PlanCheyenne.

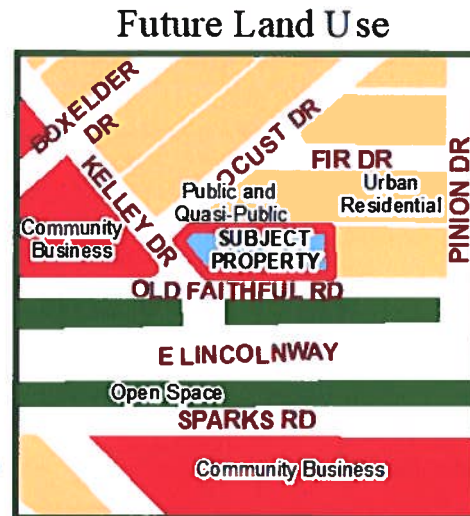
Additionally, the following policies from PlanCheyenne support the zone change:

Policy 1.1.A:

Balanced Mix of Land Uses: The Future Land Use Plan establishes a balanced mix of residential and non-residential land uses throughout the Cheyenne Area. The City and County should use the Future Land Use Plan and this Plan's policies as the main tools for guiding decisions about growth and development.

Assessment:

The proposed zoning map amendment will change the subject property's zoning to Mixed-use Residential. This will allow a low-



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS
Cooperative Program

intensity office use buffering adjacent residential properties from Lincolnway and surrounding commercial uses.

Policy 1.1.B:

Flexibility to Market Demands: The Future Land Use Plan does not predetermine all land uses on individual parcels and is intended to provide some flexibility for the market to help determine which uses are needed at a given time. However, when evaluating land uses for a proposed development, consider whether a diverse and integrated mix of uses is provided throughout the entire Cheyenne urbanized area.

Assessment:

The proposed use of the subject property is not anticipated in the Future Land Use Plan. The redevelopment and reuse of churches and places of worship is a new market demand not anticipated by PlanCheyenne and should be met with flexibility.

Policy 1.4.A:

Infill Opportunities: Support compatible infill development in existing neighborhoods and districts through the use of design standards—design guidelines in the County—to address the scale, height, and character of infill as it relates to existing development.

Assessment:

The zone change application proposes to reuse the existing church building with minor exterior updates. The existing building was built to the scale and character of the surrounding neighborhood, and the reuse and infill opportunity provided by the real estate office will continue to compliment the neighborhood character.

Policy 1.4.E:

Building Reuse: Balance business opportunities with respective impacts as properties change to new uses, encouraging private investment that is calibrated to the surrounding context.

Assessment:

This zone change will permit the reuse of an existing building in a manner that is not possible under its current zoning designation. The reuse is compatible with the existing residences as it will serve as a transition from the commercial offices and Lincolnway to the neighborhood to the North.

Policy 3.1.A:

Support Existing Small Businesses: Support existing small businesses in the Cheyenne Area, and allow and encourage them to grow by promoting opportunities for local entrepreneurs to expand existing businesses and establish new start-up businesses.

Assessment:

The applicant for the zone change application is a current small business owner within the community. The rezone application will allow the applicant the opportunity to relocate their business within the community.

-
- 2. SURROUNDING AREA** - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

This proposed project is located along the East Lincolnway corridor. East Lincolnway is characterized by a variety of uses, including commercial, civic, and residential uses. The proposed use is compatible with the surrounding area zoning, comprehensive plan, and existing uses. The office use and MUR zone will serve as a transition between commercial uses to the south and west (zoned CB), and the existing residential neighborhood to the north and east (zoned LR). The Future Land Use Map designated the surrounding area as primarily Community Business and Urban Residential, again showing that MUR can act as a transition between these two designations. The properties to the east of the application and the properties to the south across Lincolnway are included in the separate Future Land Use Map amendment to be re-designated as Mixed-use Residential and Mixed-use Commercial, respectively.

-
- 3. ZONING: BASIC STANDARDS & USES** - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

The LR zone district is intended primarily for residential uses. The existing building is highly limited in potential reuse options under the current zoning – assembly, educational, or assisted living facilities are the only realistic options. With demolition of the existing building and subdivision, single-family residential style development may also be possible.

MUR zoning permits a greater range of potential development opportunities for the subject property while maintaining the emphasis on the residential character of the neighborhood. The MUR district fosters the best opportunity to reuse the existing structure with minimal disturbance to the surrounding residences. The existing building and property can meet the standards of the MUR zone district with minor administrative adjustments.

Current Zoning



Map #4 – Zone Districts
Source: Cheyenne/Laramie County GIS
Cooperative Program

4. STREETS & OPEN SPACE - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is seeking to rezone the land as is. Any additional lot requirements regarding the use of the parcel will be addressed in the site plan review process.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The MUR District is intended for a mix of residential, retail, service, employment, and civic uses where the predominant use will be residential, with moderate or higher densities and a range of housing types. The zone change application will allow an employment use adjacent to a residential neighborhood. The proposed use will allow a transition between existing residences and a commercial area. The existing building can meet the design objectives of the MUR zone with minor administrative adjustments.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Should the proposed development not be executed, future development (or redevelopment) on this parcel will have more use options than the surrounding LR Low-density Residential Zone District. It will permit future adaptive reuse of the church building but prohibit more intense commercial uses, such as a gas station. MUR would also allow residential development, if desired.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

The following agencies were assigned to review this proposal: Community Recreation and Events, Engineering, Metropolitan Planning Organization, and Planning and Development.

Reviewing Agencies with Comments:

- Planning and Development
 - o MUR zoning for this property is not currently supported by the Future Land Use Map. However, the Comprehensive Plan does have principles and policies which support amending the map and the proposed zone change (ref: 1.1.B, 1.4.e, 2.1.d, 3.1.a, and the description of the Mixed-use Residential Emphasis Future Land Use designation).
 - o The subject property better meets the intent and applicability of the MUR zone than the LR zone (compare UDC 5.4.4.a-c with 5.3.1.a-c).
 - o Lot type would be considered "NB5".

- As a non-residential use in the LR zone, current, specific lot type is ambiguous. The existing structure is nonconforming in the MUR zone: the front of the building should be 10' or less from the front property line, the structure appears to be at 40' or more.
- MUR zoning requires new non-residential development to meet design standards of 6.7.

All other reviewing agencies did not provide Comments.

Other Comments Received:

- None.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

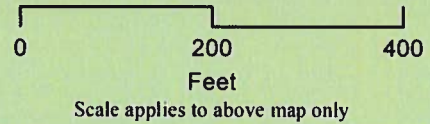
Cc: Owner, Agent/Applicant, File

3306 Kelley Dr Zone Change



Application Number
Zone Change
UDC-20-00152

Applicant:
Kari Happlod
Owner: First Church of Christ Scientist



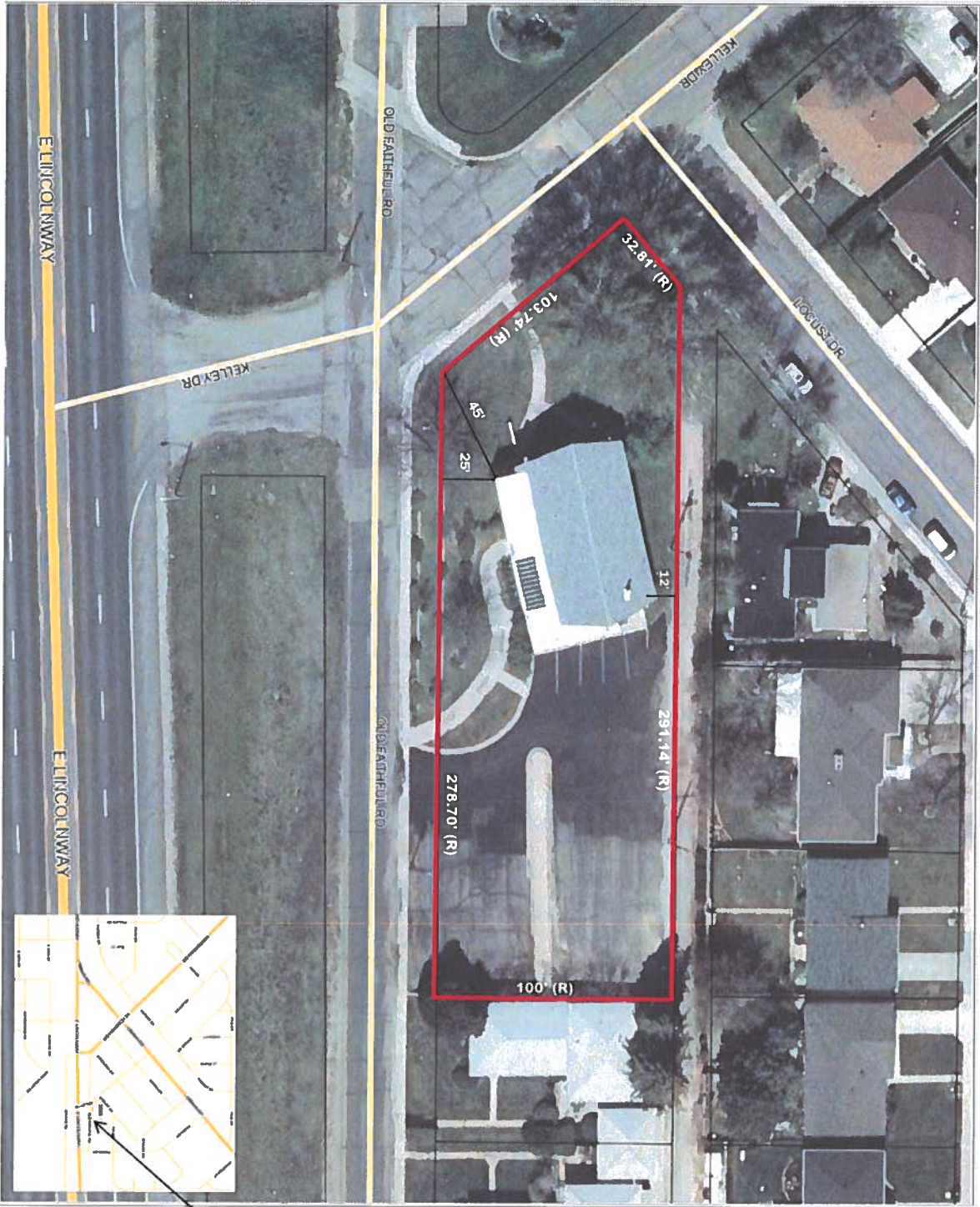
Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use





Laramie County Wyoming MapServer
Zone Change Map

for
3306 Kelley Drive; situated on
All of Lots 8, 9, 10, & 11, Block 42, Mountainview Park,
6th Filing, City of Cheyenne, Wyoming

Existing zone district:
LR - Low-Density Residential

Proposed zone district:
MUR - Mixed-Use Residential

Proposed use: Office - Limited, ±4,270 SqFt
(each owner or tenant employs less than 20
employees on premises).

Estimated trips per day generated by the use: 5,27
Single Tenant Office Building
(ITE Land Use 715 (1.74/1,000 sf))

Existing Building to Remain
Location, dimensions and height

Existing entrances/exits to remain
Location and dimension

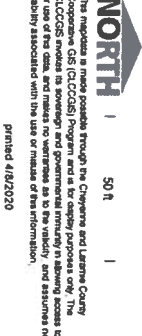
Nearest Fire Hydrant:
@NE corner of Kelly Dr & Locust Dr

Existing Building Elevation: 18' - 0" on East
Elevation and 27' - 0" on West Elevation.
Existing Building Dimensions: 49' - 8" x 73' - 0"

Surrounding Property owners are residences,
Preferred Management, Nail salon, The Church of
Jesus Christ of Latter Day Saints, and Volunteers
of America. The surrounding zoning is Low
Density Residential, Community Business, and
Planned Unit Development.

Existing objects on site to remain, proposed
changes include deck and outdoor patio on west
side of building, new bollards between upper and
lower parking, paint parking stalls, and identify
Handicap parking.

SITE LOCATION



printed 4/8/2020